CHAPTER FIFTEEN

Structural Techniques to Reduce Ethnic Conflict

The time is propitious for a preliminary assessment of structural techniques to reduce ethnic conflict. In recent years, a number of countries have turned to such techniques in the quest for measures to promote accommodation. Some results of innovations in federalism, regional autonomy, and electoral systems are now available. In yet other cases, territorial and electoral arrangements adopted for purposes not related to ethnicity nevertheless have had a significant impact on ethnic conflict. Consequently, there is some accumulated evidence on which to rest judgments of efficacy.

What formal institutions do is to structure incentives for political behavior of one kind or another. But they have a more powerful influence on some incentives than on others. Broad judgments are less helpful here than a searching examination of the precise effects of specific innovations. This examination consists of two parts. The first deals with territorial devolution, beginning with the far-reaching consequences of the new Nigerian federalism. The second considers the impact of an array of electoral innovations.

It has often been said that fundamental conflicts cannot be bridged by constitution-writing. No doubt there is truth in this observation, but it is a half-truth. Where there is some determination to play by the rules, the rules can restructure the system so that the game itself changes.

FEDERALISM, REGIONAL AUTONOMY, AND CONFLICT REDUCTION

In spite of the store of human experience with the relation of territory to ethnicity,[1] few are the practitioners or observers who could give confi-

1. See generally Ivo Duchacek, ed., "Federalism and Ethnicity," *Publius* 7 (Fall 1977).

dent advice on the key questions of federalism and regional autonomy: Under what circumstances is the creation of a separate state or region likely to forestall or encourage secession? What is the optimal form and scope such arrangements should take? How many units should there be, and should they be ethnically homogeneous or heterogeneous? What powers should be devolved upon them and what controls retained? The skillful division of authority between regions or states and a center has the potential to reduce conflict, but there is little more than dogma available about the utility of federalism; and even then the dogmas are equally divided between those who assume that territorial boundaries should follow ethnic boundaries and those who counsel that they should cross-cut them.[2] The occasional assumption of policymakers who contemplate federal solutions—in the 1985 Cyprus negotiations, for example—has been that federalism is a lesser version of partition and, as such, requires homogeneous states, one per group. Such assumptions should not be regarded as the last word.

FEDERALISM: THE NIGERIAN EVIDENCE

Every so often, political systems create quasi-experimental conditions in which propositions are inadvertently tested. These conditions are never as controlled as genuine experiments, but the propositions are generally more significant than those that can be tested in experiments. Nigeria

2. For the former view, see Ronald L. Watts, *Multicultural Societies and Federalism* (Studies of the Royal Commission on Bilingualism and Biculturalism, no. 8; Ottawa: Information Canada, 1970), 34; Ivo D. Duchacek, "Antagonistic Cooperation: Territorial and Ethnic Communities," *Publius* 7 (Fall 1977): 3–29, at 13; Kenneth C. Wheare, "Federalism and the Making of Nations," in Arthur W. Macmahon, ed., *Federalism, Mature and Emergent* (Garden City, N.Y.: Doubleday, 1955), 32. See also Arend Lijphart, *Democracy in Plural Societies* (New Haven: Yale Univ. Press, 1977), 42–43, 163, 193; Max Beloff, "The 'Federal Solution' in Its Application to Europe, Asia, and Africa," *Political Studies* 1 (June 1953): 114–31. For the latter view, see Seymour Martin Lipset, *Political Man: The Social Bases of Politics* (Garden City, N.Y.: Doubleday, 1960), 91–92.

For purposes of this discussion, the precise differences between federalism and regional autonomy are not of great moment. In some cases, such as the Sudan, regional autonomy was accorded to particular regions by otherwise unitary governments. In others, such as Sri Lanka, the grant of autonomy to one region would not be feasible unless the same arrangements were made for all regions. The line between federal and unitary states is elusive, but, in substantial measure, the distinction turns on whether the relation between the center and the component units is regarded as having an intrinsically constitutional character, often exemplified by representation based on the units in a separate legislative chamber at the center. Whereas regional autonomy necessitates only devolution, and regional decisions are sometimes subject to a central veto, federalism generally entails some degree of independence on the part of the constituent units. Cf. Claire Palley, *Constitutional Law and Minorities* (London: Minority Rights Group, Report no. 36, 1978), 13–14.

provides a far-reaching test of the impact of federalism on ethnic conflict.[3]

With two quite differently designed federal systems, separated from each other by thirteen years of military rule, Nigerian federalism affords the best evidence available on the varying impact of federalism under civilian rule. The long period of military government produced greater discontinuity between the two sets of federal arrangements than is ordinarily present when federal systems are altered. For this reason, causal relationships between the new federal arrangements and the subsequent behavior of civilian politicians and electorates are fairly clear-cut. These changes in political behavior stand out in especially sharp relief, because some continuities in behavior, harking back to the period before military rule, are also evident. Despite inevitable rough edges in the quasi-experiment, despite the problems inherent in historical comparisons, despite the short duration of the Second Nigerian Republic (1979–83)—despite all of this, the Nigerian evidence shows that federalism can either exacerbate or mitigate ethnic conflict. Much depends on the number of component states in a federation, their boundaries, and their ethnic composition. Particularly important is the relationship of ethnic group distribution to the distribution of states.

The First Nigerian Republic (1960–66) consisted of three main regions, each of them controlled by a single ethnic majority (and a party representing it) which used its control of the region to struggle furiously for power at the center. The dominance of the three major groups in their regions weakened the representation of minorities by opposition parties. Patronage, coercion, and the apportionment of seats worked together to overrepresent the regional majorities. Most overrepresented were the Hausa-Fulani, who, with little more than half of the North's population, held nearly three-quarters of the regional assembly seats from 1961 to 1965.[4] The Northern People's Congress, dominated by Hausa-Fulani and centered in the traditionally ascendant Sokoto emirate, won the vast majority of federal seats in the North and, as we saw in Chapter 9, was soon in a position to control parliament in Lagos. That control was challenged by Yoruba and Ibo parties that had also used their regions as staging areas for the battle at the center. Under this federal system, the

3. For a discussion of such "natural experiments," see Richard A. Brody and Charles N. Brownstein, "Experimentation and Simulation," in Fred I. Greenstein and Nelson W. Polsby, eds., *Handbook of Political Science*, vol. 7 (Reading, Mass.: Addison-Wesley, 1973), 218.

4. C. S. Whitaker, Jr., *The Politics of Tradition: Continuity and Change in Northern Nigeria, 1946–1966* (Princeton: Princeton Univ. Press, 1970), 324.

power of the three main groups, who together comprised less than two-thirds of the total population, was not merely reflected at the center; it was magnified by their control of regions whose boundaries extended somewhat beyond ethnic boundaries.[5]

The advent of military rule and the Biafra war provided the occasion for restructuring the federal system. To counter the Biafran charge that Nigeria was dominated by the large Northern Region, to secure the loyalty of Northern minorities strongly represented in the army, and to wean the Eastern minorities away from Biafra, the regions were carved into twelve states in 1967.[6] The three main groups were relegated to seven states. The dissolution of the old political parties by the military and the creation of new states together liberated the minorities from control of regionally dominant groups and paved the way for new alignments.

The new fluidity was enhanced by the creation of seven more states in 1976, before the return to civilian rule.[7] Now the Hausa were spread among half a dozen states, the Yoruba among five, and the Ibo between two. The proliferation of states produced a lively state politics and a more complex—and therefore less tense—politics at the center. Both of these effects of the new states were visible when civilian politics re-emerged in 1979,[8] and both effects would increase if more new states were created.

The new arrangements transferred a good deal of conflict from the all-Nigeria level to the state level. State-level conflicts have been intraethnic and interethnic. More than half the nineteen states have a substantial measure of ethnic heterogeneity, especially in the former regional minority areas. In such states, there has been tension over the allocation of civil service positions and other benefits to various groups and areas of the state. Disappointed groups have in several cases demanded creation of their own separate states. The Ibo and Yoruba states have much less

5. This was no longer true of the Yoruba after a fourth, largely non-Yoruba region was carved out of the Yoruba Western Region in 1963. Thereafter, the West, save for cosmopolitan Lagos, was nearly all Yoruba.

6. For a succinct analysis, see Crawford Young, *The Politics of Cultural Pluralism* (Madison: Univ. of Wisconsin Press, 1976), 301–08. See also Brian Smith, "Federal-State Relations in Nigeria," *African Affairs* 80 (July 1981): 355–78.

7. The nineteen states were intended, as were the twelve, to respond to the demands of minorities and to subdivide the large ethnic groups further. See Ali D. Yahaya, "The Creation of States," in Keith Panter-Brick, ed., *Soldiers and Oil: The Political Transformation of Nigeria* (London: Frank Cass, 1978), 201–23.

8. The observations that follow are based on interviews I conducted in Nigeria in 1978, supplemented by several additional interviews I conducted in 1980.

ethnic heterogeneity, but they have experienced considerable intraethnic tension. Disputes have arisen in Imo, an Ibo state, between Bende and Owerri administrative divisions over jobs and development projects; the same sort of quarrel has occurred in Yoruba states, such as Oyo, among subgroups clustered in Ife, Ilesha, and Oshogbo. The boundaries of the Ibo and Yoruba states tend to follow—and therefore reinforce—existing lines of subethnic cleavage. The Owerri Ibo in Imo have long been at odds with the Onitsha Ibo of Anambra, while the Oyo and Ogun Yoruba, consigned to states with those names, have disputed the apportionment of resources between their two states. The nineteen states thus created a new, lower layer of conflict-laden issues around which already existing differences crystallized, greatly reducing the previously unchallenged importance of contention at the all-Nigeria level.

This dispersal of conflict was reinforced by a distributive side effect of creating nineteen state bureaucracies. The federal and state bureaucracies are differently composed. Inevitably, the ethnic composition of state civil services tended to reflect the composition of the respective states, albeit not at all proportionately within heterogeneous states. These new bureaucratic opportunities reduced—though they by no means eliminated—the potentially explosive significance of a major ethnic issue at the center: the disproportionate representation of Yoruba, Edo, and a number of smaller groups in the central bureaucracy following the Ibo departure for Biafra.

None of this state-level conflict was sufficient in the South to prevent the recrudescence of essentially Ibo and Yoruba parties at the all-Nigeria level. In the 1979 senatorial, gubernatorial, and presidential elections, these two parties won between 74 and 95 percent of the vote in the solidly Ibo and Yoruba states. With the exception of a minority segment of Ibo who supported one of the parties with a substantial Northern base, at the all-Nigeria level of politics the subgroup loyalties of the two main Southern groups did not effectively compete with overarching group loyalties. Indeed, as the 1979 elections approached, both the Yoruba and Ibo parties grew more cohesive. Opposition to the Yoruba United Party of Nigeria (UPN) in the Yoruba Oyo and Ondo states was overcome, and Ibo flocked from other parties to the banner of the venerable Ibo nationalist Nnamdi Azikiwe when he took command of the Nigerian People's Party (NPP). Despite some changes in group cohesiveness in the 1983 elections, both Ibo and Yoruba parties persisted.

Major changes were wrought in the alignments of minorities in the

East and North. The Biafran hostilities had widened the gap between Ibo and the minorities in the former Eastern Region. Now concentrated in Rivers and Cross River states, the Eastern minorities tended, in the Second Republic, to align with Northern-based parties. Non-Muslim minorities in the North were also free to choose new alignments. The period of military rule had sharpened tensions between groups strongly represented in the armed forces—notably between Hausa and certain Middle Belt groups—particularly after the execution of Middle Belt officers implicated in the 1976 assassination of Murtala Mohammed. Now Plateau state, the heart of the Middle Belt, eschewing Northern alignments, supported the predominantly-Ibo Nigerian People's Party.

Most striking of all the changes was the new political significance accorded by the proliferation of states to cleavages within the Muslim North. These cleavages, always observable, were formerly muted by the undivided regional structure and the overriding struggle between the Muslim-majority North and the South.

The new states breathed new life into former Northern opposition parties based on ethnic and subethnic differences. Previously, it made little sense to support a party that would be consigned to futile and often punishing opposition in the Northern Region as a whole. In the federal election of 1959, the Northern People's Congress (NPC) won all but 6 of the nearly 100 Northern constituencies outside the Middle Belt.[9]

Now, however, electoral incentives were transformed. The pains of opposition in the undivided region became the rewards of power in the states. The creation of ten states in the former Northern Region simultaneously brought into being ten state legislatures, ten governors, and, since each state sent five senators to Lagos, fifty federal senators. A party with only minority support in the old North could now control one or more states, could gain one or more federal senate seats—for these are apportioned by territorial constituencies within states—and could have a respectable voice at the center. There had always been leaders willing to take up the cudgels of opposition in the North, but other leaders and

9. Richard L. Sklar, *Nigerian Political Parties* (Princeton: Princeton Univ. Press, 1963), 338. Properly modified for ethnic differences, the situation of Northern Nigeria under the NPC was not far from that described by V. O. Key, Jr., for one-party Virginia under the Byrd machine. For opposing parties to emerge, Key notes, "each party must, almost of necessity, have a territorial stronghold in which it can win legislative election and control local governments. . . . The punitive powers of the organization, through its control of the perquisites of local officials and its ability to obstruct local bills in the legislature, can discourage competing factions territorially segregated." *Southern Politics in State and Nation* (New York: Vintage Books, 1949), 33.

most voters had responded more sensibly to the logic of the situation by supporting the NPC. The new state boundaries turned that logic around, making ethnic and subethnic loyalties at the state, rather than regional, level more important in determining party support. The new federal structure thus facilitiated the expression of Northern heterogeneity more accurately than the earlier regional structure had permitted.

Two parties in the Muslim North benefited from the new structure. One, centered in Borno, was dominated by the Kanuri, a large majority in that state but only about 10 percent of the North as a whole. The other, centered in Kano state, embodied elements of Kano resistance to Sokoto,[10] Hausa resentment of Fulani overlordship, and social-class differences. Both parties had direct antecedents in the First Republic.

The Kanuri had been tied closely to the ruling Northern People's Congress in the First Republic. Some Kanuri, to be sure, had organized the Bornu Youth Movement (BYM), an explicitly Kanuri party. But the NPC carefully nurtured Kanuri support by a combination of rewards and pressure. The Bornu Youth Movement fought back, and interparty conflict, sometimes overlapping Hausa-Kanuri conflict, was often bitter. Nonetheless, the BYM won few elections and was confined largely to urban areas.[11]

In 1976, however, the Kanuri were awarded their own Borno state. They responded by supporting their own Great Nigeria People's Party (GNPP) to govern it.[12] In 1979, the state assembly, the governorship, and four of Borno's five senate seats were won by this party; the fifth was narrowly lost in a triangular race. The GNPP's strength also spilled into adjacent areas in the north of neighboring Gongola state. With some historical ties to the old Bornu empire, Gongola gave the GNPP a plurality of its state assembly seats (enabling it to form a fragile minority government in that state), as well as the governorship and two senate seats.

The Kanuri had fought and repelled Fulani armies in the nineteenth century. It is not surprising that, once it became possible to control their

10. Cf. Whitaker, *The Politics of Tradition*, 279–82; John N. Paden, "Islam, Constitutional Change, and Politics in Nigeria" (unpublished paper, Northwestern Univ., Oct. 1979), 4.

11. Sklar, *Nigerian Political Parties*, 339–44; Whitaker, *The Politics of Tradition*, 386.

12. The GNPP was not intended to be solely a Kanuri party, for it was earlier linked to a party with Ibo support, as explained below. But that does not detract from the fact that it was assuredly not linked to the successor to the NPC.

It should be noted that the spelling of Bornu has now been altered to Borno.

own state government, most Kanuri would leave their ties to a Hausa-Fulani party behind them. The GNPP, which was led, significantly, by a former NPC cabinet minister, Waziri Ibrahim, could easily be viewed as the Bornu Youth Movement writ large.[13] Ibrahim, however, proved maladroit at managing intraparty affairs. By the time of the 1983 elections, the GNPP was badly factionalized. Many of its leaders defected to other parties. In the presidential election, Ibrahim received fewer than half the Borno votes he had received in 1979, and the state fell to the National Party of Nigeria (NPN) in the later gubernatorial and federal legislative rounds as well.

Despite Ibrahim's quixotic quest for national power and his eventual rejection by the Kanuri, the general point remains: carving the old North into ten states created ethno-political opportunities foreclosed by the earlier system. The proof lies in another Northern state, Kano, whose political independence in 1983, as in 1979, survived the death of the founder of its ruling party.

Aminu Kano's People's Redemption Party (PRP) had considerable success in 1979 in the Hausa-Fulani state of Kano and in neighboring Kaduna state. The PRP was the reincarnation of the old, unsuccessful Northern Elements Progressive Union (NEPU), also led by Aminu Kano. In the First Republic, NEPU could be suppressed by the NPC's judicious use of regional patronage, by accusations that NEPU was dividing the North in the great struggle to control Nigeria, and by the taint of its affiliation with the leading Ibo party.[14] In the Second Republic, however, patronage was controlled at the state level, it was more difficult to see the North-South struggle as all-encompassing, and the other Northern parties were the strangers in Kano compared to the PRP. In 1979, Aminu Kano's party captured the Kano state assembly, the governorship, and all five senate seats by overwhelming majorities. In neighboring Kaduna, the PRP won two senate seats, the governorship, and a strong minority position in the state assembly. It was a far cry from the lean years of NEPU's fruitless opposition, during which, in six regional and federal elections between 1956 and 1964, the party had won a grand total of eighteen seats. In the last Northern regional elections, in 1961, NEPU

13. So uncanny, in fact, was the resemblance that the former interparty, interethnic violence has reappeared in Borno; and, in the 1979 election, the traditional ruler of the Bornu emirate, the Shehu, threw his support to the NPN just as he had earlier supported the NPC over the Bornu Youth Movement.

14. Whitaker, *The Politics of Tradition*, 385, 410.

had won one seat to the NPC's 156.[15] While factionalism hurt the PRP in Kaduna in 1983, the party did very well again in Kano, winning the governorship, nearly every federal and state seat, and the presidential vote in the state.

Many of the forces that had supported the NPC in the First Republic were drawn to the NPN in the Second. In 1979, the NPN did well in many traditional areas of NPC strength—indeed, in practically all except those areas where the GNPP and PRP showed the strength denied to their antecedent parties in the First Republic. This limitation, however, was enough to crimp the Northern support of the NPN, so that it won, for example, only half the governorships in states of the former Northern Region. In 1983, however, in an election marred by fraud, the NPN won all the Northern governorships except Kano.

Each of the five major parties of the Second Republic was thus recognizable as a somewhat altered version of one or more of the parties of the First Republic. This was most abundantly clear for the GNPP and the PRP. The Yoruba UPN was a recrudescence of the Action Group but without the Action Group's allies outside Yorubaland. The mainly-Ibo NPP inherited most of the support of the Ibo NCNC, but with the addition of support in Plateau state that would earlier have gone to the old United Middle Belt Congress. In the First Republic, the UMBC had been aligned with the Action Group. The NPN, with the same following the NPC had in many Hausa-Fulani areas of the North, also developed a strong following in the Ibo state of Anambra and in the Eastern minority areas. Much of the latter support had formerly been linked to the Action Group. These elements of party continuity attest to the persistence of ethnic forces in Nigeria, even in the face of certain changed ethnic alignments and of NPN strength outside the Muslim North.

The main impact of the new federal structure on party politics was, then, not to abolish ethnically based parties. To the contrary, as parties formed and re-formed in 1978–79, it was easy to discern the sorts of mergers and splits that are so characteristic of the evolution of ethnic parties in divided societies. The GNPP, for example, was originally part of the now mainly-Ibo NPP. It split off when Azikiwe took the NPP leadership, depriving Waziri Ibrahim of a chance to be the NPP presidential candidate. Originally, Ibrahim took some Ibo leaders with him to the GNPP; but these returned to the NPP camp after the 1979 elections,

15. Ibid., 374.

TABLE 11 FEDERAL ELECTION RESULTS IN NORTHERN NIGERIA, 1959, 1979, AND 1983
(by party; in percentage of Northern seats in federal legislative bodies)

	1959 House		1979 House	1979 Senate	1983 House	1983 Senate
	(n = 174)		*(n = 240)*	*(n = 50)*	*(n = 240)*	*(n = 50)*
NPC	77	NPN	51	58	75	76
NEPU	5	PRP	21	14	17	10
AG/UMBC	14	UPN	5	8	2	4
		NPP	8	8	6	8
BYM and Other	4	GNPP	16	12	0	2
Total	100		101[a]	100	100	100

SOURCES: For 1959, C. S. Whitaker, Jr., *The Politics of Tradition: Continuity and Change in Northern Nigeria, 1946–1966* (Princeton: Princeton Univ. Press, 1970), 374; for 1979, official returns; for 1983, *West Africa*.
[a]Total does not equal 100 because of rounding.

leaving the GNPP with no significant Southern support and the NPP with no support north of the Middle Belt. Not an end to ethnic parties but a rearrangement of the building blocks of such parties, and—in 1979—a less distorted reflection of their underlying strength, particularly in the North: these were the main consequences of the new federal structure.

The results of this in federal legislative elections for Northern constituencies are visible in Table 11, which lists parties competing in the North in the First Republic opposite their nearest successors in the Second. The table shows plainly that the difference in 1979 was the way seats were spread among the Muslim parties of the North: the decreased strength of the NPN *vis-à-vis* its predecessor, the NPC, and the concomitantly increased strength of both the Kano-based PRP *vis-à-vis* its predecessor, NEPU, and the Kanuri-based GNPP *vis-à-vis* the Bornu Youth Movement.

Looking carefully across the first line of the table, depicting NPC and NPN percentages, it appears as if the 1983 results entailed a reversion to the pattern prevailing in the First Republic, whereby the party representing Hausa-Fulani was able to capture support disproportionate to its underlying population in the North. There are, however, two considerations that militate against such a clear-cut interpretation. First, two-thirds of the NPN increase from 1979 to 1983 was due to the collapse of the GNPP. Indeed, despite the GNPP's factionalization and defections, the NPN presidential candidate won both Borno and Gongola states with less than a majority—which is quite different from the overwhelming support the NPC enjoyed there in the First Republic. This rather clearly implies that a revival of Kanuri cohesion, under the aegis of the GNPP or some other party, would restore the 1979 NPN results. Second, there is something more important about the 1979 results. The first election under the new constitution was a watershed event. Since, in that election, the NPN could not count on the undivided support of the North, it proceeded to cement relationships with groups outside the North, as I shall point out very shortly. These relationships survived the change in the Northern balance of power in 1983, so that, while the NPN was a Hausa-Fulani party in the North, it was not just that in the country as a whole. The fortuitous collapse of Kanuri cohesion in 1983, rather than in 1979, is testimony to the capricious but decisive significance of sequences of behavior in determining the impact of institutional innovations.

It may seem odd to lay so much emphasis on the electoral impact of the new states, but it is not wide of the mark. The Nigerian experience shows that federalism can act as a kind of electoral reform, setting off one arena from another, making and unmaking legislative majorities and minorities by adjusting the territory in which their votes are to be counted. As the new states changed electoral incentives, their effect in the North was rather like a change in electoral formula. The new states substituted something akin to proportional representation for the winner-take-the-whole-region formula that had exaggerated the strength of the largest regional party and of the largest ethnic group that comprised the party's support. If additional states are created, and if elections return to Nigeria, this proportionality effect should increase.

The new states reduced the overall power of the Hausa-Fulani, so it was no longer plausible for them to think of dominating the whole country. The reduced strength of the NPN in the North in 1979 gave the party a powerful incentive to do what new electoral requirements also encouraged it to do—appeal to ethnic groups outside the core area of its support and, indeed, outside the North altogether. The NPN had more success in reaching out to groups across the country than any other party did: it won the presidency and the largest number of seats in both federal houses in 1979 and in 1983. That the new states had the secondary effect of reinforcing incentives for interethnic cooperation across North-South lines is evidence of the efficacy of using territorial boundaries as an instrument of conflict reduction. Federalism, in short, can create a new framework for electoral reasoning on the part of voters and party leaders. By heightening the importance of cleavages within the North, the new framework ultimately reduced more dangerous cleavages at the all-Nigeria level.

Finally, the creation of nineteen states ranging in population from less than two million to more than eight million also created incentives for political actors to see at least a few all-Nigeria level issues in terms of competition among states, rather than among ethnic groups. Electoral issues in the Constituent Assembly that framed the new constitution occasionally arrayed large states against small states. On revenue issues, rich states have argued that revenue should be spent where it is "derived"; resource-poor states, that revenue should be apportioned by population. Interethnic alliances are notable on both sides.

The new Nigerian federal framework thus utilized all five mechanisms of conflict reduction enumerated earlier. First, the proliferation of states

dispersed some of the conflict into more parochial forums. Second, the new states provided arenas in which intraethnic conflict might also occur. Third, a result of this was to enhance the position of some political parties at the expense of others, especially in the North, paving the way for greater interethnic cooperation in the all-Nigerian arena. Fourth, as the new states fought to advance their interests, a few nonethnic issues and actors were also introduced. And, fifth, the separate state bureaucracies provided career opportunities for groups not well represented in the federal civil service. Using all these tools, the nineteen states readjusted, realigned, and complexified the Nigerian political system.

In many ways, of course, there was substantial continuity between the First and Second Republics. Yet, even in party politics, where that continuity was manifest, what is striking is the considerable importance of rather small changes in party support. To be sure, the electoral impact of the new states was abruptly terminated by the (nonethnic) military coup that occurred on the last day of 1983. Nevertheless, in the wake of all the failures of planned change in the developing world, the Nigerian arrangements had by then already demonstrated that it is possible to take deliberate action to restructure institutions so as to alter ethnic balances and alignments.

THE DESIGN OF TERRITORIAL STRUCTURES

The Nigerian experiment provides a demonstration of the importance of political context in shaping the manifestations of ethnic conflict. If the results are replicable, territorial design may prove a useful instrument of conflict reduction.

In spite of the small number of federal states in Asia and Africa, several conclusions from the Nigerian experience can be corroborated. There is already good, if limited, evidence on the ethnic impact of homogeneous and heterogeneous states, the consequences of alternative ways of drawing boundaries, and the costs of devolution in terms of ethnic conflict.

Homogeneous States

If groups are territorially separate and subethnic divisions are prominent, the case for ethnically homogeneous states is strong. (The term *homogeneous*, needless to say, does not preclude subethnic cleavages.) India, which moved toward "linguistic" states in the 1950s, provides abundant testimony. The classic case is Andhra Pradesh, a state of Tel-

ugu-speakers previously merged with Tamil-majority Madras. The Telugu movement for a separate state "assumed such an intensity that it was unimaginable that within a decade language . . . would have to contend with other claims."[16] Yet, after a separate Andhra was conceded in 1953, language conflict was superseded by the unremitting struggle between the Kamma and Reddi castes, both Telugu, to control the state, not to mention the equally fervid struggle between the Telangana region (which joined the state in 1956) and the Coastal region of Andhra.[17] Subethnic differences have also preempted politics in other monolingual Indian states. Kerala politics has revolved around the rivalry of Ezhavas, Christians, Nairs, and Muslims, a quadrilateral configuration of caste and religious conflict replicated in no other state.[18] Neighboring Karnataka, designed as a homogeneous Kannada-speaking state, "since its inception has been a silent spectator of the uninterrupted virulent race for power between Lingayats and Vokkaligars."[19] Bihar has its quarrels between tribals and caste Hindus. In each case, broader territorial boundaries would probably produce broader ethnic conflict, along the lines of Tamil-Telugu conflict in pre-1953 Madras.

The complexity of Indian society has facilitated the flow of conflict in linguistically homogeneous states into subethnic channels, just as it has in Nigeria's homogeneous states. Under such circumstances, devolution of a generous share of power upon largely homogeneous federal units promises a dramatic reduction in conflict at the center. Many issues will be contested within ethnic groups, rather than between them, simply because many contested issues become state-level issues. It is difficult to infer causality from Switzerland, because it has not had intense conflict, but it has been argued that Swiss federalism, with its powerful and mainly homogeneous cantons, is effective in dampening ethnic conflict because of the sparseness of contentious issues at the confederal level of

16. Jyotirindra Das Gupta, "Ethnicity, Language Demands, and National Development in India," in Nathan Glazer and Daniel P. Moynihan, eds., *Ethnicity: Theory and Experience* (Cambridge: Harvard Univ. Press, 1975), 485.

17. G. N. Sharma, "Aspects of Andhra Politics," in Iqbal Narain, ed., *State Politics in India* (Meerut, India: Meenakshi Prakashan, 1968), 96–104.

18. Lloyd I. Rudolph and Susanne Hoeber Rudolph, *The Modernity of Tradition: Political Development in India* (Chicago: Univ. of Chicago Press, 1967), 71–76; Selig Harrison, *India: The Dangerous Decades* (Princeton: Princeton Univ. Press, 1960), 196–99; V. K. S. Nayar, "Communal Interest Groups in Kerala," in Donald Eugene Smith, ed., *South Asian Politics and Religion* (Princeton: Princeton Univ. Press, 1966), chap. 8.

19. Sushil Kumar, "Panorama of State Politics," in Narain, ed., *State Politics in India*, 68.

politics and the "tranquilizing effect" of compartmentalizing them.[20] Whether or not this is what works in Switzerland, it certainly seems promising for countries with these attributes: serious conflict at the center, territorially separate groups, and significant subethnic divisions. It is essentially what was proposed for Nigeria by Ibo leaders on the eve of the Biafra secession: "Since the control of the Centre has been the main cause of friction and tensions between the different Regions, thereby threatening national solidarity and integrity, the distribution of functions between the Regions and the Centre should be reviewed and so arranged that only such subjects and functions as will engender the minimum of suspicion and friction among different groups are allowed in the hands of the Federal Government."[21] Few states in Asia and Africa, however, would be willing to accord as much power to constituent units as Switzerland does to its cantons.

Even less generous devolution, however, promises some results. The regional autonomy agreement put into effect for the Southern Sudan in 1972 carefully limited the powers of the People's Regional Assembly it created for the South, and the agreement specified that the regional Executive Council was to be responsible to Khartoum.[22] Limited though Southern authority was, it was sufficient to set in motion a contest for control of the region that brought to the fore all the intra-Southern differences that had been manifested during the civil war: between those who spent the war years in Khartoum and those who spent them in exile or in the bush, among the various Southern parties, and among the several main ethnic groups in the South. As the regional government began its work, new intra-Southern issues arose. Now it became imperative that bureaucratic appointments and expenditures not favor one group or area over another.[23] The autonomy agreement seems to have

20. Hans Daalder, "On Building Consociational Nations: The Cases of the Netherlands and Switzerland," in Kenneth D. McRae, ed., *Consociational Democracy: Political Accommodation in Segmented Societies* (Toronto: McClelland & Stewart, 1974), 110; André Siegfried, *Switzerland: A Democratic Way of Life*, trans. Edward Fitzgerald (New York: Duell, Sloan & Pearce, 1950), 161.

21. Statement of Lt. Col. Ojukwu to Diplomatic Representatives of the U.K. and U.S.A., Sept. 1966, reprinted in *Nigerian Crisis, 1966: Eastern Nigerian Viewpoint* (Enugu: Eastern Nigeria Ministry of Information, 1966), 42.

22. "The Addis Ababa Agreement on the Problem of South Sudan," Chaps. IV–VI, in *The Grass Curtain* (London) 2 (May 1972): 18–20.

23. Nelson Kasfir, "Southern Sudanese Politics Since the Addis Ababa Agreement," *African Affairs* 76 (Apr. 1977): 143–66; James E. Sulton, Jr., "Regional Autonomy in the Southern Sudan: A Study in Conflict Regulation" (Ph.D. diss., Johns Hopkins Univ., 1980), 200–03, 255–56, 410; *Sudanow* (Khartoum) 5 (June 1980): 12.

achieved some balance between North-South issues and intra-Southern issues, but the balance was undone by the controversial division of the South into three regions in 1983 and the resurgence of warfare thereafter.

The development councils adopted in Sri Lanka in 1980 are also centrally controlled, but they, too, augur some restructuring of conflict. Elected councils were set up in every administrative district. However, members of parliament comprise a majority of members of each council, and a centrally appointed district minister sits as a member of the council's executive committee. The councils operate as local authorities in rural areas and have limited powers of taxation, but the district minister and the central government he represents retain ultimate authority.[24] In order to make them more palatable to Sinhalese opinion, which fears Tamil separatism, the development councils were portrayed as mere adjuncts of the district ministers, useful for decentralizing development functions.[25] In fact, they were designed to be district legislatures. At the time of adoption, some policy planners spoke of the councils as a "settlement" with the Tamils, an arrangement for "quasi-federalism," or "24 states."[26] Plainly, the councils were intended to devolve power upon local authorities which, in the North and East, would be Tamil-dominated.

That, indeed, is how they were perceived by Muslim members of the commission appointed to make recommendations regarding the structure of the councils. In a concurring report, two Muslims pointedly opposed inclusion of the Muslim minority, heavily concentrated in the Eastern Province, within the jurisdiction of Tamil-dominated units; they also opposed elections to the councils.[27] Their apprehension reflects the

24. By the terms of the Development Councils Act, No. 35 of 1980, sections 61–63, the district minister is empowered to remove any council member or the chairman of the council for incompetence, mismanagement, abuse of power, unlawful behavior, or default in the performance of duty, while the president of Sri Lanka is authorized to dissolve a council's executive committee if there are differences between it and the district minister or to remove executive committee members for incompetence or mismanagement. For a survey of the councils, see Bruce Matthews, "District Development Councils in Sri Lanka," *Asian Survey* 22 (Nov. 1982): 1117–34.

25. See, e.g., *Far Eastern Economic Review* (Hong Kong), Aug. 17, 1979, p. 15. In an interview, however, President Jayewardene referred revealingly to district ministers as becoming "rather like the Chief Ministers who run Indian states." *Ceylon Observer* (Colombo), Apr. 6, 1980.

26. I am drawing here and elsewhere in this discussion on interviews I conducted with several members of the Presidential Commission on Development Councils and some leading politicians and policymakers, Sinhalese, Tamil, and Muslim, in Colombo in April 1980.

27. *Report of the Presidential Commission on Development Councils*, Sessional Paper No. V—1980 (Colombo: Government Publications Bureau, 1980), 83–95 (Note of Reservation by Mr. A. C. M. Ameer, Q.C., and Mr. M. A. Azeez).

fact that, as Tamils are outnumbered by Sinhalese in Sri Lanka, Muslims are outnumbered by Tamils in the Eastern Province. In the first elections to the councils, held in 1981, the Tamil United Liberation Front did indeed capture control over the six councils in the North and East.

Were it not for the severe anti-Tamil riots of 1983, as well as the continuing Tamil terrorism and army reprisals, it would seem safe to conclude that the Sri Lankan devolution might portend a good deal less Sinhalese-Tamil conflict at the center, in exchange for somewhat more intra-Tamil and Tamil-Muslim conflict in the districts of the East. This last, of course, is not subethnic, for the Muslims are not Tamils (though they are Tamil-speaking), but it is certainly conflict at a lower level and with different alignments. Where groups are territorially concentrated, devolution may have utility, not because it provides "self-determination," but because, once power is devolved, it becomes somewhat more difficult to determine who the self is.

That the riots and the terrorism occurred despite the devolution is, of course, no evidence against the efficacy of devolving power. The terrorism that precipitated the riots was, as I shall suggest in Chapter 16, the product of long-standing Tamil frustration. What the violence shows, once again, is the importance of timing: accommodation long delayed may be accommodation ultimately denied.

Heterogeneous States

Where groups are territorially intermixed, some reduction in conflict at the center may be achieved by the creation of heterogeneous states. The Malaysian federal system illustrates several purposes that may be fulfilled by carving out states with varying degrees of heterogeneity.

First, as the new states in Nigeria showed, federalism can create political compartments in which ethnically and subethnically differentiated parties can flourish. If ethnic ratios vary from state to state, a group that is a minority at the center may be a majority in one or more states and may be in a position to rule these states, thereby mitigating its reduced influence or even exclusion at the center. This was the theory behind the unwritten arrangement that gave the Chinese a preeminent voice in the Chinese-majority state of Penang. Like reserved offices—which it practically is—this arrangement tends to exacerbate subethnic divisions and promote intraethnic party competition.

Second, state governments provide opportunities for the development of interethnic elite relations that sometimes soften ethnic hostility among politicians. In Malaysia, land is a subject reserved to the states. Chinese

businessmen who need land for development or who need state approval for other projects find it advantageous to develop close relations with the Malay chief minister or with members of the state executive council. A frequent result of these close business relations is that the Malay politicians involved become "much quieter" on ethnic issues.[28]

Third, though it may seem unlikely, even ethnically heterogeneous states may produce a quarantine effect for certain issues of ethnic conflict. Two of the worst outbreaks of ethnic violence in Malaysia—in Penang in 1967 and in Kuala Lumpur in 1969—were largely, though not entirely, confined to the states in which they began. The issues which precipitated the violence may have been seen as local or state issues; in the latter case, the precipitant was related to the results of the state elections. Quarantine effects seem more likely where state boundaries have some historical foundation, as they do in Malaysia, and are not merely convenient constructs. The creation of ethnically heterogeneous states may help scale down to the state level some divisive issues that might otherwise engulf the entire country.

If this is so, the benefits of heterogeneous states challenge the conventional wisdom that federalism is an apt prescription for ethnic conflict only when groups are territorially compact and therefore amenable to encapsulation in homogeneous units. In fact, the prospects for federalism are more complex than the conventional formula would indicate, for neither homogeneous nor heterogeneous units are useful under all conditions.

As I have noted, what makes homogeneous states useful in conflict control is the existence of lower-level cleavages that are activated in state politics. Without subethnic divisions or lower-level ethnic divisions than those that prevail in politics at the center—or *with* a structure that suppresses such lower-level divisions, as the old regional system did in Nigeria—homogeneous states are unlikely to reduce conflict at the center. Rather, they are likely to be, as the Nigerian regions were, springboards

28. The phrase is drawn from an interview I conducted with a Malay politician in Kuala Lumpur, Jan. 1968. Joseph S. Nye has pointed out that one function of corruption is sometimes to "overcome divisions in a ruling elite that might otherwise result in destructive conflict," and he specifically notes that elites based on power and on wealth sometimes have "assimilated each other" through corrupt payments. "Corruption and Political Development: A Cost-Benefit Analysis," *American Political Science Review* 61 (June 1967): 417–27, at 420. In Malaysia, interethnic elite relations at the state level are greatly facilitated by the multiethnic alliance that has long ruled the country and nearly all the states. Because of this party arrangement, state-level Malay and Chinese politicians simply must deal with each other.

to group power at the center. Especially if there are only a few units, homogeneous states on the model of the First Nigerian Republic will exacerbate rather than alleviate ethnic conflict. Consequently, not all homogeneous states are an improvement on no states at all.

On the other hand, heterogeneous states sometimes are a decided improvement on unitary government. However, as we shall see in a moment, heterogeneous states embracing territorially separate groups, each occupying a portion of the state, have some tendency to fission. In practical terms, therefore, heterogeneous states with the greatest potential for reducing ethnic conflict are those whose groups are intermixed or whose territorial boundaries have some long-standing binding force, as the Malaysian states (formerly sultanates) have.

In short, federalism is not for everybody. The federal judgment must be a differentiated and prudential one. Even so, it is safe to say that federalism or at least some devolution has conflict-reducing possibilities for many more countries than have so far contemplated it.